

HOUSE No. 3328

The Commonwealth of Massachusetts

PRESENTED BY:

Tricia Farley-Bouvier and Mindy Domb

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to virtual meetings of appointed statewide public bodies.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>1/14/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/15/2025</i>

HOUSE No. 3328

By Representatives Farley-Bouvier of Pittsfield and Domb of Amherst, a petition (accompanied by bill, House, No. 3328) of Tricia Farley-Bouvier and Mindy Domb relative to virtual meetings of appointed statewide public bodies. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3671 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to virtual meetings of appointed statewide public bodies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 20 of chapter 30A of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out subsection (d).

3 SECTION 2. Said chapter 30A is hereby further amended by inserting after section 20
4 the following section:

5 Section 20A. (1) A statewide public body, hereafter “public body”, whose members are
6 appointed may allow remote participation by any member for any meeting of the public body.
7 For the purposes of this section, the term “remote participation” means participation by a
8 member of a public body during a meeting of that public body where the member is not
9 physically present at the meeting location.

(2) Members remotely participating in a meeting may vote and shall be considered present and in attendance for all purposes, including for purposes of determining a quorum.

(3) All members of the public body participating either remotely or at a meeting location shall be clearly audible to one another and shall make known the names of members of the public body and the public present either remotely or at a meeting location.

(4) For any meeting conducted through remote participation, the public body shall make provisions to ensure public access to the deliberations of the public body for interested members of the public through adequate, alternative means. Adequate, alternative means of public access shall mean measures that provide transparency and permit timely and effective public access to the virtual meeting. Such means may include, without limitation, providing public access through telephone, internet or satellite enabled audio or video conferencing or any other technology that enables the public to clearly follow the proceedings of the virtual meeting while those proceedings are occurring. Documents used for any such meeting should be made available to the public before or at the time of the meeting of the public body. Where allowance for active, real-time participation by members of the public is required by law, pursuant to which the proceeding is conducted, any alternative means of public access shall provide for such participation. A public body shall offer its selected alternative means of public access to virtual meetings without subscription, toll or similar charge to the public.

(5) A public body that elects to conduct its proceedings remotely shall ensure that any party entitled or required to appear before it may do so through remote means, as if the party were a member of the public body participating remotely.

(6) This section shall not apply to any municipal body.